IN THE UNITED STATES PATENT AND TRADEMARK OFFICE
BEFORE THE TRADEMARK TRIAL AND APPEAL BOARD

In the matter of Registration No. 9,999,001 For the mark: HARBORLIGHT Registered: March 3, 2020	
Northgate Lantern Works, Inc., Petitioner, *v.* Pemberton & Vale Chandlers LLC, Respondent.	Cancellation No. 92099999

RESPONDENT'S ANSWER AND AFFIRMATIVE DEFENSES TO PETITION FOR CANCELLATION

Respondent Pemberton & Vale Chandlers LLC ("Respondent"), through counsel, answers the Petition for Cancellation (the "Petition") filed by Petitioner Northgate Lantern Works, Inc. ("Petitioner") as follows. Paragraph numbers correspond to the numbered paragraphs of the Petition.

Answer

1. Respondent admits that Petitioner is a corporation organized under the laws of the State of Example.

2. Respondent lacks knowledge or information sufficient to form a belief about the truth of the allegations of paragraph 2 and therefore denies them.

3. Respondent admits that Registration No. 9,999,001 issued on March 3, 2020 for the mark HARBORLIGHT for "lanterns; candle holders," and denies the remaining allegations of paragraph 3.

90. Respondent denies the allegations of paragraph 90 of the Petition, a paragraph that begins with a numeral and a period.

- Respondent denies the allegations that begin with a hyphen in the Petition's unnumbered paragraph.

2) Respondent denies the allegations introduced by a numeral and a parenthesis in the Petition's prayer.

Respondent denies each allegation of the Petition that this Answer does not expressly admit.

Affirmative Defenses

A. Respondent's use of HARBORLIGHT is prior to Petitioner's

Respondent pleads the following, each in the alternative:

1. The Petition alleges that Petitioner has used its mark since 2021. Respondent's first use of HARBORLIGHT in commerce predates that date. The registration's certificate, quoted below, states the date.

That date is before every date on which the Petition relies.

> Registration No. 9,999,001 recites a date of first use in commerce of June 1, 2018.

2. Respondent will rely on the following in support of this defense:

- the dated invoices for HARBORLIGHT lanterns sold in 2018;
- the dated catalog pages for the 2018 and 2019 seasons; and
- the certificate of registration.

Alternative pleading

3. If the Board finds that the goods recited in the registration are broader than Respondent's use, Respondent is entitled to retain the registration for the goods on which the mark was used before Petitioner's claimed date.

Prayer for Relief

WHEREFORE, Respondent requests that the Board deny the Petition and dismiss this proceeding with prejudice.

Dated: January 5, 2027

Respectfully submitted,
EXAMPLE & EXAMPLE LLP

/Jordan R. Example/

Jordan R. Example
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CERTIFICATE OF SERVICE

I hereby certify that on January 5, 2027, a true and complete copy of the foregoing Respondent's Answer and Affirmative Defenses to Petition for Cancellation was served by email on:

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